

THE UNIVERSAL HOUSE OF JUSTICE

1987-03-25

To all National Spiritual Assemblies

dear b ahá'í friends,

in furtherance of the goal of the Six year plan to educate the friends throughout the world in the law of buququ'lláh, the research department has prepared a simple codification of the law. A copy of this codification is enclosed for you to share, as you judge appropriate, with the friends under your jurisdiction. it is based largely on a codification produced spontaneously by some friends in Austria and on another written under the auspices of the united States National Spiritual Assembly. references throughout the document are to the sections of the compilation on buququ'lláh which has already been sent to you.

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To help the friends increase their understanding of the significance of this law of god, the research department was also requested by the universal house of justice to prepare a brief history of the development of the institution which has been associated with the law since the early years of its operation. This is also enclosed and is based on an article in persian written by the hand of the cause of god dr. 'Alí muḩammad varqá, apart from the final section about dr. varqá himself, which has been added by the research d epartment.

it is hoped that National Spiritual Assemblies will use this material as extensively as possible to educate the friends and deepen their understanding of this vital law of the f aith of b ahá'u'lláh.

with loving b ahá'í greetings,

Department of tHe secretariat

21-1. See cc 1:489-527 .21.1

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A Codification of the Law of Ḥuqúqu'lláh

march 1987

prepared by the research department

at the request of the universal house of justice

I. Preamble

Ḥuqúqu'lláh (The right of god) is a great law (7)21-2 and a sacred institution

(72). laid down in the most holy book (kitáb-i-Aqdas), it is one of the key

instruments for constructing the foundation and supporting the structure

of the world order of bahá'u'lláh. it has far-reaching ramifications that

extend from promoting the welfare of the individual, to buttressing the authority and extending the activity of the head of the faith. in providing

a regular and systematic source of revenue for the central institution of the

cause, bahá'u'lláh has assured the means for the independence and decisive

functioning of the world center of his faith.

by identifying this law as “The right of god” bahá'u'lláh has reem-

phasized the nature of the relationship between human beings and their creator as a covenant based on mutual assurances and obligations; and, by

designating the central Authority in the cause, to which all must turn, as

the recipient of this right, he has created a direct and vital link between

every individual believer and the head of his faith that is unique in the

structure of his world order. This law enables the friends to recognize the

elevation of their economic activity to the level of divine acceptability, it is

a means for the purification of their wealth and a magnet attracting divine

blessings. The computation and the payment of Ḥuqúqu'lláh, within the

general guidelines set forth, are exclusively a matter of conscience between the individual and god (8, 104); demanding or soliciting the Ḥuqúqu'lláh

is prohibited (8, 9, 38, 71, 96, 104), only appeals, reminders and exhortations of a general nature, under the auspices of the institutions of the faith, are permissible (38, 70, 99, 104, 107).

That the observance and en-

forcement of this law, so crucial to the material well-being of the emerging bahá'í commonwealth, should thus have been left entirely to the faith and

conscience of the individual, gives substance to and sheds light on what the

21-2. The numbers in parentheses refer to the paragraphs of the compilation on

Ḥuqúqu'lláh issued by the house of justice.21.4

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beloved master calls the spiritual solution to economic problems. indeed, the implications of the law of ḥuqúqu'lláh for the realization of a number of the principles of the faith, such as the elimination of extremes of wealth and poverty, and a more equitable distribution of resources, will increasingly become manifest as the friends assume in ever greater measure the responsibility for observing it.

The fundamentals of the law of ḥuqúqu'lláh are promulgated in the kitáb-i-Aqdas. further elaborations of its features are to be found in other writings of bahá'u'lláh, in Tablets from 'Abdu'l-b ahá and in letters from separately published. A study of that compilation makes it clear that the application of the law has been progressive, and will continue to be so, as its ramifications and subsidiary rulings are elucidated.

The following is a preliminary attempt at codifying the information in the writings on the subject of ḥuqúqu'lláh. it should be emphasized, however, that the friends should not attempt to read into it an element of rigidity or total comprehensiveness. The questions put to bahá'u'lláh, the master and Shoghi effendi were from friends residing in places and times with infinitely simpler economic systems and relationships than those which obtain today. what can be learned from them are clear guiding principles whose application to changing and more complex conditions must be considered. The subject will undoubtedly occupy the universal house of justice in evolving legislation, as necessary, for a long time to come. As the fourth epoch of the formative Age of our faith unfolds before the eyes of an increasingly watchful humanity, the universal assumption of the obligation of ḥuqúqu'lláh by the friends will be a clear sign of attaining to a new level of spiritual maturity by the community of the greatest Name throughout the world.

II. A Bounty Granted by God

god, while being wholly independent of all created things, has in his bounty given us this law (7, 10, 63), for the progress and promotion of the cause depend on material means (1). obedience to this law enables the believer to be firm and steadfast in the covenant (63), provides a reward in

every world of the worlds of god (7), and is a unique test of true faith (62).21.6

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5The ḥuqúqu'lláh is to be offered joyfully and without hesitation (2, 9, 32). when the ḥuqúqu'lláh is offered in this spirit it will impart prosperity and protection to the friends, purify their worldly possessions (20, 31, 42, 46, 48, 100), and enable them and their offspring to benefit from the fruits of their endeavors (48).

III. Determining the ḥuqúqu'lláh

everything that a believer possesses, with the exception of certain specific items, is subject once and only once to the payment of ḥuqúqu'lláh.

A. exempt from assessment to ḥuqúqu'lláh are:

1 The residence and its needful

21-3 furnishings (11).

2 The needful business and agricultural equipment which produce income for one's subsistence (12, 67, 68).

b. payment falls due:

1 ḥuqúqu'lláh is payable as soon as a person's assessable possessions reach or exceed the value of 19 mithqáls of gold (18, 19, 30). [19 mithqáls equals approximately 2.2 troy ounces, or approximately 69.2 grams (87, 105, 110). At the present time—m arch 1987—this is equivalent to some uS\$914.]

a. The amount to be paid is 19% of the value of the as-sessable property (10, 14).

b. The payment is due on whole units of 19 mithqáls of gold (15).

2 ḥuqúqu'lláh is payable on further units of 19 mithqáls of gold when subsequently acquired possessions, after the deduction of the annual expenses, raise the value of the assessable property sufficiently. Among the expenses to be deducted are:

a. The general expenses of living (65, 66, 69, 78).

b. losses and expenses incurred on the sale of possessions (103).

c. Sums which are paid to the State, such as taxes and duties (78).

21-3. See iii.c.1.21.9

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63. when a person receives a gift or bequest it is to be added to his possessions and augments the total value in the same way as does an excess of annual income over expenditure (111).

4 i f a property increases in value, ḥuqúqu'lláh is not payable on that increase until it is realized, e.g. on the sale of the property.

5 i f possessions decrease, such as through the expenses of a year exceeding the income received, ḥuqúqu'lláh falls due again only after the loss has been made good and the total value of one's assessable possessions is augmented (15–19, 30, 65–68, 78, 108, 111).

6 The payment of debts takes precedence over the payment of ḥuqúqu'lláh (22).

7 . The payment of ḥuqúqu'lláh is dependent on the person's financial ability to meet his obligations (24).

8 o n the death of a believer, the completion of his payment of ḥuqúqu'lláh is accomplished in the following manner:

a. The first charge on the estate is the expense of burial (22).

b. Secondly, the debts of the deceased must be paid (13).

c. The ḥuqúqu'lláh still due on the property should then be paid. in establishing the value of the property on which ḥuqúq has not already been paid, the following are among the deductions to be made:

– expenses of burial (22),

– debts of the deceased (13),

– loss of value of the assets when realized (103)

and

– expenses incurred in realizing the assets (103).

c. f urther notes on determining ḥuqúqu'lláh:

1 i t is left to the discretion of the individual believer to decide what
is “needful” for himself and his family (104–6, 112).

2 Although references are made to annual payments of ḥuqúqu’lláh,
the time and method of payment are left to the discretion of the individual believer. There is,
therefore, no obligation to liquidate
one’s assets in haste in order to fulfill one’s current obligations to
ḥuqúqu’lláh (103).

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73. h usband and wife are free to decide whether they want to honor
their ḥuqúqu’lláh obligations jointly or individually (109, 110).

4 The account of ḥuqúqu’lláh should be kept separate from other
contributions, inasmuch as the disposition of the funds of the
ḥuqúqu’lláh is subject to decision by the central Authority in
the cause to which all must turn, whereas the purposes of the
contributions to other funds may be determined by the donors
themselves.

5 p ayment of the ḥuqúqu’lláh has priority over making contribu-
tions to other funds of the faith (78, 79, 97, 100), as well as over
the cost of pilgrimage (31). it is, however, left to the discretion of
the believer whether or not he treats his contributions to the fund
as an expense when arriving at the value of the annual accretion
to his property for the purpose of calculating the ḥuqúqu’lláh
that he is due to pay (105).

IV. Applicability of the Law of Ḥuqúqu’lláh The teachings of bahá’u’lláh can be enforced only
gradually because the

time must be ripe if the desired results are to be attained (84–86). Thus
hitherto the law of ḥuqúqu’lláh has been applied only to the believers
from iran and other countries of the middle east. The other believers

have been encouraged to support their local and national funds in its place but, although the
law is not yet binding on them, they are and have been free to offer the ḥuqúqu’lláh if they
wish to do so (82, 93, 102, 103, 109,

110).

V. Payment of Ḥuqúqu’lláh

The ḥuqúqu’lláh is normally paid to the T rustee of ḥuqúqu’lláh, his depu-

ties, or their appointed representatives (35, 58). These persons issue receipts and forward the funds to the world center (56).

VI. Management of the Puqúqu'lláh

decisions on the necessary ordinances concerning puqúqu'lláh (81, 100), as well as on its disposition, lie within the sole jurisdiction of the central Authority in the cause. The puqúqu'lláh can be employed for charitable purposes (62, 65, 75), or for other purposes useful to the cause of god (77, 78).^{21.11}

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mes Sage from The Universal House of Justice

8The Development of the Institution of Puqúqu'lláh

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prepared by the research department

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in one of his Tablets bahá'u'lláh refers to this law as ranking in importance immediately after the two great obligations of recognition of god and steadfastness in his cause, and yet the introduction and implementation of this law are characterized by kindness, forgiveness, tolerance and magnanimity. Although it deals with the material things of this world, it is placed among those spiritual obligations resting on the individual soul, such as prayer and fasting, the fulfillment of which is a direct responsibility of each believer towards god, not subject to the sanctions or impositions of his institutions in this world. it is, indeed, a clear expression of the priorities with which bahá'u'lláh views the duties of mankind. first comes the spiritual, and then the material—however important in practice the latter may be. After the kitáb-i-Aqdas had been revealed in response to the pleas of the friends, bahá'u'lláh withheld it from publication for some time and even then, when a number of devoted bahá'ís, having learned of the law, endeavored to offer the puqúqu'lláh, the payment was not accepted. The Tablets of bahá'u'lláh show his acute consciousness of the way in which material wealth has been permitted to degrade religion in the past, and he preferred the faith to sacrifice all material benefits rather than to soil to the slightest

degree its dignity and purity. herein is a lesson for all bahá'í institutions for all time.

however, as the beloved guardian explained, funds are the life-blood of the cause. god himself, as bahá'u'lláh stated, has made achievement dependent on material means. Therefore, as the awareness of the friends grew, he permitted the puqúqu'lláh to be accepted, provided the donor made the offering willingly with joy and awareness.

To receive the puqúqu'lláh, bahá'u'lláh brought into being one of the great institutions of the faith, the Trusteeship of puqúqu'lláh.

The first to be honored with appointment as Trustee of puqúqu'lláh was jináb-i-Sháh muḥammad from manshád, yazd, who eventually received from the blessed beauty the title of Amínu'l-b ayán (Trustee of the bayán).

ḥájí Sháh muḥammad had embraced the faith in its early years and had the bounty of entering the presence of bahá'u'lláh in baghdad. The fire of love kindled in his heart made him impatient to offer his services to 21.14

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9the Threshold of his beloved, and this undertaking he followed until the last moment of his life, surrendering all material belongings in the path of service. encompassed by hardship, danger and lack of means, this trusted servant of bahá'u'lláh, in journey after journey, would carry the friends' donations of puqúqu'lláh and their petitions to the Sacred Threshold and, in return, bring them news and Tablets from the blessed perfection.

one of the most sacred tasks entrusted to Amínu'l-b ayán was to go to iran to receive the remains of the báb from their custodian, the devoted and valiant hand of the cause of god jináb-i-ḥájí ákhúnd, and to transfer them through innumerable dangers to a safe hiding place in the mosque of the imámzádiḥ zayd in Tehran, where they lay concealed until the time when, at the behest of 'Abdu'l-b ahá, they were transferred to the holy land to be laid in their permanent resting place on the slopes of mount carmel.

The attention of jináb-i-Sháh muḩammad was drawn to the rare qualities of nobility and detachment of one of the believers, pájǐ Abu'l-ḩasan Ardakání, who was also from yazd. The bond of fellowship between them became so strong that they became the closest of companions. jináb-i-Sháh muḩammad chose pájǐ Abu'l-ḩasan to be his assistant and confidant in his services as the T rustee of ḩuqúqu'lláh. They were among the first group of pilgrims who, after encountering grave hardships and difficulties, were able to visit bahá'u'lláh in 'Akká. on their return to iran they decided to make numerous journeys together, and on one of these journeys, in 1881, they were attacked and caught during a kurdish revolt, and jináb-i-pájǐ Sháh muḩammad was seriously wounded. bahá'u'lláh instructed that, following the passing of jináb-i-Sháh muḩammad, the office of T rustee of ḩuqúqu'lláh should be conferred upon his loyal assistant and companion, jináb-i-pájǐ Abu'l-ḩasan, who was subsequently entitled Amín (the T rusted one) or j ináb-i-pájǐ Amín.

jináb-i-pájǐ Amín was a shining star who served the cause for forty-seven years with eagerness and zeal, showing magnanimity, courage and incredible steadfastness. during the ministry of bahá'u'lláh he was imprisoned twice, by order of Ná'iri'd-dín Sháh and his son, kámrán mírzá. in the course of his second imprisonment, in the prison of qazvín, referred to as Sijn-i-m atín (the mighty prison) by bahá'u'lláh in the opening verses of the Tablet of the world, he was together with the hand of the cause pájǐ ákhúnd. here, jináb-i-Amín suffered gravely, his legs in fetters and a chain around his neck. his jailers, in order to torment him, would add castor oil to his food. with manifest resignation and submission, he would neither

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0complain nor refuse the food, eating as though nothing were amiss. he was a symbol of magnanimity and detachment. he had no worldly possessions, no home or shelter of his own. his habitation was in the hearts and souls of the bahá'í friends who would receive and entertain him with warmth and love. each one would impatiently await his arrival, to enjoy the sweet melody of his prayers and chanting of the Tablets, the glad-tidings and

encouragement he would bring. every day he would bid good-bye to one family to spend the night in another household, illumining another gathering with his presence. he was continually on the move, traveling to most iranian cities and being the trusted adviser of many bahá'í friends in their personal affairs.

Among the countless journeys that pájī Amín made was one to paris where he attained the presence of 'Abdu'l-b ahá. during his long life he witnessed the last eleven years of the ministry of bahá'u'lláh, the twenty-nine years of the ministry of the center of the covenant, and seven years of the guardianship of Shoghi effendi. Towards the end of his life he became ill and frail and was confined to bed, living in the home of his friend and assistant, pájī ghulám riḥá, who, at the express desire of 'Abdu'l-b ahá, had been appointed his successor as T rustee of ḥuqúqu'lláh. upon his passing in 1928, pájī Amín was named by the beloved guardian a hand of the cause of g od.

The third T rustee of ḥuqúqu'lláh, jináb-i-g hulám riḥá, was entitled Amín-i-Amín (T rustee of the T rustee). This distinguished soul was born into the wealthy merchant class of Tehran and was brought up to enjoy the comfortable life associated with it. during his youth, the urge to discover spiritual realities led him to the study of comparative religion and, while engaged in his business, he ventured to search out and associate with fol-lowers and leaders of religion. disappointed in what he found, he sought more information about the bahá'í faith, which had been introduced to him by his secretary. This enquiry soon developed into a serious study of the sacred Tablets and writings and his heart was illumined with the light of faith. After embracing the cause, jináb-i-pájī ghulám riḥá engaged in bahá'í activities and, at the age of 32, he gave up trade to devote himself fully and freely to the service of the faith. he developed a special attachment to jináb-i-Amín and became his constant assistant. in due course he received a Tablet from 'Abdu'l-b ahá urging him to emulate jináb-i-Amín and appointing him as T rustee of ḥuqúqu'lláh. while ever mindful of the 21.22 21.23

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1responsibilities of his new position, he took the utmost care of jináb-i-

Amín for the remainder of his life.

jináb-i-g hulám riḫá held the rank of T rustee of ḡuqúqu'lláh for eleven years. his home became a center for the gatherings of the friends and for the administration of the affairs of the faith. it was during his T rusteeship that initial steps were taken for the registration of bahá'í properties and endowments in iran, and he was assiduous in doing his utmost for their protection and preservation. i n 1938 he fell ill and passed away.

The fourth T rustee of ḡuqúqu'lláh, appointed to this position by the beloved guardian, was jináb-i- valíyu'lláh varqá, the third son of varqá the martyr. he was born in Tabríz and, after the martyrdom of his father and brother, he was brought up from early childhood by his grandmother, a staunch, powerful and fanatical muslim. She did her utmost, until his early youth, to sow the seeds of enmity to the faith in his heart. when he was sixteen, his uncle, surnamed Akhu' sh-Shahíd (the brother of the martyr), managed to remove him from this agonizing atmosphere of prejudice and took him to his home in míyándu'áb. There he introduced him to the bahá'í faith and its teachings, opening a new world to jináb-i- varqá. So afire did he become with love for the faith that, without any preparations, he decided to go on pilgrimage in the company of a close friend. however, his local Spiritual Assembly did not approve of this, and guided him, instead, to go to Tehran to join his elder brother j ináb-i-'Azízu'lláh v arqá. After his schooling in Tehran, jináb-i- varqá's longing to make his pilgrimage was fulfilled, and he then attended the American university in beirut, deepening his knowledge of the bahá'í teachings under the guidance of 'Abdu'l-b ahá during his summer vacations. during this time he made a journey to iran at the behest of the master, and later accompanied him on his historic journey to europe and America, as an interpreter. upon the completion of this journey, he returned to iran and rendered invaluable services on the local Spiritual Assembly of Tehran, in many bahá'í administrative agencies, and ultimately on the National Spiritual Assembly. his loyal and dedicated service as T rustee of ḡuqúqu'lláh was to follow, occupying him for seventeen years, during which time the observance of the law of ḡuqúqu'lláh was spread throughout iran, so that ever more of the friends

fulfilled their obligations, offering large sums and many properties. in order to devote his full time to this sacred enterprise, jináb-i- varqá resigned from the work in which he was employed.21.24

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2in 1951 jináb-i- valíyu'lláh varqá was among the first contingent of eminent believers elevated by Shoghi effendi to the rank of hand of the cause of god. This opened new opportunities for him to meet with the friends and cheer their hearts with news of the victories being achieved in the teaching work, especially during the Ten year crusade, which opened at riṣván 1953. These memorable services culminated in the fulfillment of his long-cherished desire to visit the beloved guardian.

on his return to iran from pilgrimage, a previous ailment grew worse, and jináb-i- varqá was forced to go to Tübingen in germany for hospital treatment and an operation. The treatment, alas, was unsuccessful, and in November 1955 his noble life drew to a close.

in the cable announcing the passing of valíyu'lláh varqá, Shoghi effendi included the words: "h is mantle as T rustee ḡuqúq now falls on 'Alí muḡammad, his son. . . . Newly appointed T rustee ḡuqúq now elevated rank h and cause."

just two years following the appointment of jináb-i-'Alí-m uḡammad varqá to this onerous task, he and his fellow hands of the cause of god were confronted with the heart-breaking and soul-stirring events associated with the passing of the beloved guardian, and carried the entire bahá'í world to the victorious conclusion of the Ten year crusade, bringing into being, at riṣván 1963, the u n i v e r s a l h o u s e o f j u s t i c e.

The following twenty-three years have seen storms of tribulation and persecution afflicting the bahá'í community in iran, causing immense problems to be wrestled with in relation to the safeguarding and sale of properties donated for the ḡuqúqu'lláh as well as a multitude of other historic tasks that have fallen to the lot of jináb-i- varqá in his capacity as a hand of the cause of g od.

The successive teaching plans caused an outflow of pioneers from iran to all corners of the world, requiring the Trustee of ḥuqúqu'lláh to appoint deputies and representatives in many countries beyond the borders of iran until, at this time, the institution is represented in every continent of the earth. Not only do the friends from middle eastern countries continue to obey the law of ḥuqúqu'lláh in their adopted countries, but, increasingly, other friends have been moved to offer the ḥuqúq.

A new stage, therefore, has now been opened in the development of this institution, a stage that will for ever be associated with the opening of the fourth epoch of the formative Age of the faith and the emergence of the bahá'í community from obscurity into the arena of world affairs.^{21.27}

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Riḍván Message 1987

[signed: The Universal House of Justice]